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Case Number: 24STCV23615 Hearing Date: June 23, 2026 Dept: 307

6 TENTATIVE RULING 9:15 a.m., Tuesday, June 23, 2026

SANAZ

SAHA v. KOUROSH NETTY, et al. [24STCV23615]

MOTION

FOR SUMMARY JUDGMENT OF THE FIRST AMENDED COMPLAINT, OR ALTERNATIVELY, SUMMARY

ADJUDICATION OF THE 15TH AND 17TH CAUSES OF ACTION OF DEFENDANTS

BRITTNEY GHADOUSHI, MASOUD NETTY, NILOOFAR NETTY, BIJOU NETTY, AND DOREEN NETTY

BACKGROUND:

Domestic violence action

between former romantic partners, also alleging IIED and conspiracy against

family members

TIMELINE:

Summer 2021: Plaintiff Sanaz Saha ("Saha" or

"Plaintiff") and Defendant Kourosh Netty ("Kourosh") begin an intimate

relationship. During the relationship, Kourosh engages in a pattern of domestic violence of Saha. Kourosh's family members, Defendants Brittney Ghadoushi ("Ghadoushi"), Masoud Netty ("Masoud"), Niloofar Netty ("Niloofar"), Bijou Netty ("Bijou"), and Doreen Netty ("Doreen") (collectively, the "Family Defendants") allegedly contributed to this pattern of abuse.

5/31/2022: Saha and Kourosh's daughter, Isabella, is born.

6/12/2022: Kourosh physically assaults Saha.

7/6/2022: Kourosh calls the police under false pretenses, resulting in Saha's arrest. When Saha arrives home from the jail, Bijou tells Plaintiff that "every woman at some point gets beaten by her partner" and makes other comments minimizing Kourosh's abusive conduct.

9/11/2022: Kourosh physically assaults Saha.

9/13/2022: Kourosh, Masoud, and Doreen have a telephone conversation where Masoud encourages Kourosh to kick Saha out of their residence (which was leased exclusively by Kourosh) and impliedly threatens Saha with his power in the city.

9/14/2022: Kourosh kicks Saha out of their residence and she calls the police. Kourosh is arrested for domestic violence in connection with the 9/11/2022 incident. The Court issues an emergency

protective order, which is followed by a restraining order on 9/15/2022.

1/3/2023: Saha and Kourosh's relationship ends

and Saha permanently moves out of the family's home with Isabella. Another restraining order is put into place against Kourosh in January 2023.

6/7/2026: The Court issues a DVRO against

Kourosh in favor of Saha.

6/17/2023: Saha goes to retrieve

her personal property from Kourosh's apartment. Ghadoushi and police officers were present in the apartment during the property retrieval.

7/10/2023: Bijou parks in front of

Plaintiff's residence and takes photographs of Plaintiff's car and home from the street.

Unknown Date(s): Defendants Angels Monitoring

SFV, LLC ("AMSFV") and its agent, Samantha Faye Brown ("Brown") are assigned to

monitor Kourosh's visitations with Isabella. Defendant Angels Monitoring

Franchise, LLC ("AMF")^[1] is

the franchisor of AMSFV.

9/12/2024: Saha files her Complaint

against Kourosh, the Family Defendants, AMSFV, Brown, AMF, and Max Central Carson Inc. ("MCCI").^[2] The operative First Amended Complaint ("FAC"),

filed 10/31/2024, alleges causes of action for:

.

1

to 14: Assault, Battery, False Imprisonment, Trespass to Chattels, Conversion, Domestic

Violence, Violation of the Bane Act (Civ. Code § 52.1), Violation of the Ralph

Civil Rights Act (Civ. Code § 51.7), Stalking, Harassment, Defamation, Fraud

(Intentional Misrepresentation), Abuse of Process, and Malicious Prosecution [v.

Kourosh]

.

15:

Intentional Infliction of Emotional Distress [v. Kourosh and the Family

Defendants]

.

16:

Negligent Infliction of Emotional Distress [v. Kourosh, Masoud, MCCI, AMSFV, and Brown]

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17:

Civil Conspiracy [v. Kourosh and the Family Defendants]

.

18:

Negligent Supervision and Retention [v. Masoud and MCCI]

.

19:

Breach of Contract [v. AMSFV]

.

20:

Breach of Fiduciary Duty [v. AMSFV and Brown]

.

21:

Negligence [v. AMSFV, Brown, and AMF]

.

22:

Negligent Training and Supervision [v. AMF, AMSFV, and Brown]

.

23:

Vicarious Liability under Agency Theory [v. AMF]

.

24:

Unfair Business Practices (Violation of Bus. & Prof. Code § 17200 et seq.)

[v. AMF and AMSFV]

2/24/2025: The Court issues its ruling on

the Family Defendants' Demurrer to the FAC. The Court overrules the demurrer to

the 15th and 17th causes of action and sustains the

demurrer to the 16th and 18th causes of action without

leave to amend. On the same date, the Court also issues its ruling on the

Anti-SLAPP Motion of Ghadoushi and Niloofar, granting the motion and striking

portions of paragraphs 47, 247(b) & (c), 248(a) and (b), and 267 from the

FAC.

8/21/2025: The Family Defendants file a

joint Answer to the FAC.

2/13/2026: The Family Defendants file this

Motion for Summary Judgment ("MSJ"), which is followed by Saha's original Opposition

(4/29/2026) and the Family Defendants' original Reply (5/1/2026).

4/27/2026: Saha files an Ex Parte

Application to Continue Trial and the MSJ hearing, which the Court denies on

4/29/2026.

5/13/2026: The Court holds the initial hearing

on the MSJ and continues the hearing pending further discovery (including the pending

motions to compel further discovery, initially scheduled to be heard on

5/20/2026) pursuant to Code of

Civil Procedure section 437c, subdivision (h). The MSJ hearing is continued to

6/10/2026 and the Court orders a supplemental Opposition to be filed by

5/29/2026 and a supplemental Reply, if any, to be filed by 6/4/2026.

Thereafter, the Court continues the

motions to compel further discovery to 5/22/2026 due to the unavailability of

the Court.

5/21/2026: Plaintiff and the Family Defendants

file a joint stipulation to continue the motions to compel further discovery to

6/29/2026. The stipulation makes no reference to the MSJ hearing.

6/10/2026: The Court holds a second hearing on

the MSJ. Plaintiff makes no appearance. As no supplemental briefing on the MSJ was

received at this point, the Court does not provide an amended tentative ruling.

Instead, the Court seeks clarification on the connection between the 5/21/2026

stipulation and the MSJ supplemental briefing timeline. Counsel for the Family

Defendants represents that by excluding reference to the MSJ from the

stipulation, the parties intended for the MSJ to be heard as scheduled per the

5/13/2026 Minute Order. Accordingly, the Court continues the MSJ hearing to

6/23/2026 to provide the Court time to prepare a ruling. Because Plaintiff was

absent from the hearing, the Court requests a declaration as to whether there

is any remaining connection between the MSJ and the 6/29/2026 discovery

motions.

6/17/2026: Plaintiff files a Supplemental

Opposition to the MSJ. Plaintiff also files an Ex Parte Application to

continue the MSJ hearing (now set for 6/23/2026) and for leave to file a

supplemental opposition, citing a calendaring error by Plaintiff's counsel. On

6/18/2026, the Ex Parte Application is denied.

TENTATIVE

RULING: MOTION FOR SUMMARY JUDGMENT OF DEFENDANTS BRITTNEY GHADOUSHI, MASOUD

NETTY, NILOOFAR NETTY, BIJOU NETTY, AND DOREEN NETTY is GRANTED.

I. MOTION

FOR SUMMARY JUDGMENT

The Family Defendants move for summary

judgment of Plaintiff's FAC in their favor. Alternatively, the Family Defendants

move for summary adjudication of two causes of action asserted against them:

(1) the fifteenth cause of action for intentional infliction of emotional

distress ("IIED") and (2) the seventeenth cause of action for civil conspiracy

on the grounds that Plaintiff cannot satisfy the elements of her claims. For

the reasons discussed below, the Court GRANTS summary judgment in favor of the

Family Defendants.

A.

15th

Cause of Action: IIED — GRANTED

No

triable issues of material fact exist with respect to Plaintiff's IIED[3]

claim against the Family Defendants. In the FAC, Saha alleges that Kourosh engaged

the Family Defendants to participate in and exacerbate the alleged pattern

of abuse against Saha. Specifically, Saha alleges the Family

Defendants "engaged in a coordinated pattern of behavior designed to

intimidate, harass, and emotionally distress Plaintiff" to force Plaintiff to

abandon her legal rights against Kourosh, to undermine Plaintiff's credibility

in legal proceedings, and to interfere with her parental rights over Isabella. (FAC, ¶¶ 46,

265.) Although the Court concluded that these allegations were sufficient to

survive the pleading stage, Plaintiff now fails to produce sufficient evidence that

any of the five Family Defendants engaged in behavior that can be deemed

outrageous or intended to cause severe emotional harm as a matter of law.

To be

"outrageous," conduct must be so extreme as to exceed all bounds of decency in

a civilized community. (Potter v. Firestone Tire & Rubber Co. (1993)

6 Cal.4th 965, 1001 (Potter).) For example, "[b]ehavior may be

considered outrageous if a defendant (1) abuses a relation or position which

gives him power to damage the plaintiff's interest; (2) knows the plaintiff is

susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress. [Citation.]” (Stoiber v. Honeychuck (1980)

101 Cal. App. 3d 903, 921.) However, there is typically no recovery “for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyance.” (Yurick v. Superior Court (1989) 209 Cal.App.3d 1116, 1129 (Yurick), disapproved on other grounds as stated in Carmichael v. Alfano Temp.

Personnel (1991) 233 Cal.App.3d 1126, 1130; Cochran v. Cochran (1998) 65 Cal.App.4th 488, 496 (Cochran) [“There is no occasion for the law to intervene in every case where some one's feelings are hurt. There must still be freedom to express an unflattering opinion, and some safety valve must be left through which irascible tempers may blow off relatively harmless steam.... ”].) Whether conduct is “outrageous” is a question of fact where

reasonable minds may differ. (Cross v. Bonded Adjustment Bureau (1996) 48 Cal.App.4th 266, 283.)

a.

Defendant Brittney Ghadoushi

First, Plaintiff

alleges Ghadoushi attempted to prevent Plaintiff from retrieving her and Isabella's personal belongings during a court-ordered property retrieval. (FAC, ¶¶ 37, 47, 247.) Ghadoushi allegedly took photographs of Plaintiff during the property retrieval process and withheld certain property from Plaintiff. (Id. ¶ 37.)[4]

The

Family Defendants submit sufficient prima facie evidence to suggest that Ghadoushi's conduct at the property retrieval was not "outrageous." Ghadoushi admits she was present at Kourosh's residence when Plaintiff when to retrieve her personal property on June 17, 2023. (Ghadoushi Decl., ¶ 2.) However, Ghadoushi denies that she interfered with Plaintiff's retrieval of any property that belonged to Plaintiff. (Id. ¶ 2.) Ghadoushi also declares that police officers were present at the location during the property retrieval process and denies that any police officer instructed her or requested that she leave the premises, suggesting that Ghadoushi was not unreasonably interfering with Plaintiff's access to her property or creating an undue disruption. (Id. ¶¶ 3, 5.) The Family Defendants also submit the deposition testimony of Saha.

(Price Decl., Exh. A.) In her deposition, Saha stated that Ghadoushi told her during the property retrieval that Saha "took everything when [she] left," even though Ghadoushi was not there when Saha moved in or out. (Id. at pp. 62:18-63:1.) Saha stated that Ghadoushi was "just following [her] around" and

kept saying “You took everything. You took everything.” (Id. at p.

63:10-12.) However, Saha admits that two police officers were present “the

entire time” and watching all of these interactions. (Id. at pp.

63:15-20, 63:24-64:8.) Saha admitted that the police officers did not

interfere. (Id. at pp. 63:21-23, 64:9-14.) Additionally, although Saha

testified that her carpets, shoes, leather jacket, and bags were not in the

house, she does not state that Ghadoushi was involved in taking any of these

items. (Id. at p. 63:7-11.)

Taken

together, these facts reflect a single incident in which Ghadoushi was present

at Kourosh's property during Saha's property retrieval. Even if Ghadoushi was

made comments about Saha's property retrieval and followed her around to

observe Saha's movements through the apartment, such conduct does not appear to

amount to anything more than “mere annoyances,” particularly considering that

the police officers present at the scene did not express concerns of abusive or

illegal conduct occurring by Ghadoushi. (Yurick, *supra*, 209

Cal.App.3d at p. 1129.) Thus, the

burden shifts to Plaintiff to raise a triable factual dispute regarding the

“outrageous” nature of Ghadoushi's conduct.

In response, Saha submits Ghadoushi's

discovery responses which demonstrate that she was present at the residence

during the June 17, 2023 property retrieval and took at least one video of

Plaintiff while she was on the premises. (Piesner Errata Decl., ¶ 11; Exh.

B, at Nos. 9-12.) In her discovery responses, Ghadoushi also admits that she had a brief

conversation with Kourosh regarding having a non-party individual present at

the property during the property retrieval, as requested by the Family Court.

(Exh. B, at No. 27.) These additional factual details are insufficient to raise

triable issues of material fact. If anything, Ghadoushi's

discovery responses suggest that she was lawfully on the premises as a

non-party representative during the property retrieval. Further, even if

Ghadoushi took a video of Plaintiff during the property retrieval, the totality

of the circumstances still does not rise above the level of "mere annoyances," which are not actionable as a

matter of law. (Yurick, *supra*, 209 Cal.App.3d at p. 1129.)

Even if the evidence suggests that Ghadoushi distressed Plaintiff or created

unnecessary interpersonal tension during the property retrieval, no reasonable

jury could conclude that Ghadoushi's conduct was so extreme as to exceed all bounds of decency expected

in a civilized community. (Potter,

supra, 6 Cal.4th at p. 1001.) Therefore, the Court finds that Ghadoushi's

conduct was not "outrageous" as a matter of law.

b.

Defendant Masoud Netty

Second, Plaintiff

alleges Masoud actively threatened Plaintiff and boasted about his influence in

the city. (FAC, ¶¶ 46, 265.) Specifically, Plaintiff alleges

Masoud stated to Plaintiff: "Do you know who I am? You are messing with the

wrong people, half of this city knows me." (Id. ¶ 246.) Plaintiff

further alleges that Masoud verbally abused her after an incident of physical

violence on September 11, 2022, encouraged Kourosh to remove Plaintiff from her

home, and intimidated Plaintiff by promising to hire Kourosh the best lawyer to

gain full custody of Isabella. (Ibid.) Plaintiff also alleges

Masoud "contributed to Plaintiff's isolation by telling [Kourosh] they

couldn't inform their children about Plaintiff's pregnancy." (Id. ¶ 48.)

The

Family Defendants submit sufficient prima facie evidence to suggest that

Masoud's conduct toward Saha was not "outrageous." In her deposition, Saha

testified that she viewed Masoud's comment ("Do you know who I am?...") as a

threat to her life. (Price Decl., Exh. A, at pp. 53:5-19, 54:21-55:10.) Saha

admitted, however, that Masoud had never threatened her life before, suggesting

that it was merely Plaintiff's subjective perception that Masoud's statement

was threatening violence. (Id. at p. 55:11-12.) Saha also testified

that she overheard a telephone call in which Masoud told Kourosh that he would

“get [him] the best lawyer in Beverly Hills. Kick her out” and “[Saha] can come

back and take her child later.” (Id. at p. 54:5-10.) Even so,

Plaintiff admits that Kourosh was the only lessee on the rental agreement for

the apartment, indicating that Masoud was merely giving Kourosh legal advice

about his property rights, even if Plaintiff found the statement disagreeable. (Id. at

p. 56:13-23.) Taken together, this testimony suggests that Masoud’s comments

amounted to nothing more than mere “insults, indignities, or threats,” particularly

considering that Saha could not identify any evidence beyond her own personal

opinion that Masoud was threatening physical violence against her. (Yurick,

supra, 209 Cal.App.3d at p. 1129.) Thus, the

burden shifts to Plaintiff to raise a triable factual dispute regarding the

“outrageous” nature of Masoud’s conduct.

In

response, Saha fails to submit any evidence to support her allegation that Masoud

came to her residence and “verbally abused her” after an incident of physical

violence on September 11, 2022. (FAC, ¶ 246.) At most, Saha confirms

that the extent of Masoud’s alleged conduct occurred during the telephone

conversation between Kourosh and Masoud on September 13, 2022. (Saha Decl., ¶

14; Piesner Decl., Exh. A, at Nos. 1, 3.) In addition to confirming her

deposition testimony related to Masoud's alleged "threat," Saha declares that during this telephone conversation, Masoud also told her "I don't think you are that stupid [Saha]. Are you?" (Saha Decl., ¶ 14.) Saha further declares that "Masoud directed Kourosh to open the door and kick [her] out of the home, telling Kourosh that [she] could come back later to get [their] daughter." (Ibid.) Kourosh forced her out of the residence the following morning. (Ibid.) Saha also declares that Masoud failed to intervene to stop Kourosh's abuse and even directed it by telling Kourosh to expel Saha from the home and separate her from Isabella, and by personally threatening Saha. (Ibid.)

Even if

the evidence suggests that Masoud encouraged Kourosh to remove Saha from their residence or that he verbally taunted Saha during an interpersonal conflict, statements directed at individuals other than Plaintiff (here, Kourosh) and verbal abuse or threats are not an actionable basis for IIED as a matter of law. (Yurick, supra, 209 Cal.App.3d at p. 1129.) While Plaintiff contends that Masoud "directed" further domestic abuse, Plaintiff does not submit any evidence suggesting that Masoud encouraged Kourosh's physical violence or gave Kourosh any instructions other than advice related to his property and family law rights. Ultimately, no reasonable jury could conclude that angry or hostile statements made by a family member during a period of

heightened interpersonal conflict

exceed all bounds of decency expected in a civilized community.

(Potter, *supra*,

6 Cal.4th at p. 1001.) Therefore, the Court finds that Masoud's

conduct was not "outrageous" as a matter of law.

c.

Defendant Niloofar Netty

Third,

Plaintiff alleges Niloofar participated in spreading false

information about Plaintiff to discredit her in legal proceedings. (FAC, ¶ 248.)[5]

The

Family Defendants submit sufficient *prima facie* evidence to suggest that

Niloofar's comments were not "outrageous." In her deposition, Saha admits that

Niloofar did not testify in the domestic violence court proceedings. (Price

Decl., Exh. A, at p. 86:17-20.) However, Saha believed that Niloofar was going

in and out of the courtroom during "every hearing" and "going between the

witnesses." (Id. at pp. 86:21-87:5.) Even so, Saha admitted that she did

not know what Niloofar said and merely inferred that she was spreading false

information because of Niloofar's reaction, demeanor, and facial expressions. (Id.

at p. 87:6-16.) Saha also conceded that there was no court order preventing

Niloofar from saying anything to people outside of the courtroom. (Id.

at pp. 88:21-89:6.) Plaintiff does not offer any indication

that she believed Niloofar's conduct constituted illegal witness tampering,

such as making threats against witnesses. Niloofar's mere presence in the

courtroom is a protected activity. Even

if Niloofar had made false statements to other individuals during and nearby the

court proceedings, the spreading of rumors does not amount to anything more

than inactionable insults. (Yurick, *supra*, 209 Cal.App.3d at p. 1129.)

Thus, the burden shifts to Plaintiff to raise a triable factual dispute

regarding the "outrageous" nature of Niloofar's conduct.

In response, Saha relies on her own

declaration on information and belief that Niloofar repeated false statements

about her, including that Saha was "crazy," mentally unstable, suffering from

borderline personality disorder, and an unfit mother, and that Saha had

fabricated her domestic violence allegations against Kourosh. (Saha Decl., ¶ 21.) Saha's knowledge of these

comments is purportedly based on "statements communicated to [her]" by unidentified

"mutual contacts" and family members, her observations of how the family

related to her, and "the contents of the operative" FAC. (Ibid.) Hearsay

statements from third-party witnesses and Plaintiff's personal impressions of

the Family Defendants constitute an insufficient basis to demonstrate that

Plaintiff has adequate personal knowledge of any statements made by Niloofar. Moreover, even if Plaintiff submitted competent evidence of these comments, private communications between family members— which were not directed at Saha in particular— are not an actionable basis for an IIED claim. (*Catsouras v. Dept. of Cal. Hwy. Patrol* (2010) 181 Cal.App.4th 856, 875 [“It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.”]; see *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 904 [“The requirement that the defendant’s conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.”].)

d.

Defendant Doreen Netty

Fourth, Plaintiff

alleges Doreen encouraged the harassment and intimidation of Plaintiff

and participated in the Family Defendants’ campaign to isolate and

stigmatize Plaintiff. (FAC, ¶ 249.) Plaintiff also alleges that Doreen

“contributed to Plaintiff’s isolation by telling [Kourosh] they couldn’t

inform their children about Plaintiff’s pregnancy.” (*Id.* ¶ 48.)

The

Family Defendants submit sufficient prima facie evidence to suggest that Doreen's comments were not "outrageous." In her deposition, Saha admitted that she "didn't care" if Doreen did or did not tell her children about Saha's pregnancy. (Price Decl., Exh. A, at p. 92:10-22.) Instead, Plaintiff stated that the comment was only important to her because it caused a fight between Kourosh and Saha. (Id. at p. 92:19-22.) Even so, given that Plaintiff admits that she was not upset by Doreen's comments about her pregnancy, these statements cannot support her claim for IIED as a matter of law. Thus, the burden shifts to Plaintiff to raise a triable factual dispute regarding the "outrageous" nature of Doreen's conduct.

In response, Plaintiff declares that Doreen was on the phone call with Masoud and Kourosh on September 13, 2022, although she does not identify any specific statements made by Doreen at that time. (Saha Decl., ¶¶ 14, 23.) For the same reasons discussed above with respect to Masoud, Doreen's presence on the telephone call is not an actionable ground for IIED as a matter of law.

Plaintiff also declares that Doreen "cut off all communications" with Saha around June 2022. (Id. ¶ 17.) For example, Plaintiff states that Doreen never reached out to Saha to inquire about her safety, Isabella, or any other

purpose. (Ibid.) Saha characterizes Doreen's conduct as a deliberate effort to exclude Saha from the family during a domestic violence crisis. (Ibid.) Nevertheless, even if Doreen decided to cut off contact with Saha and engaged in personal communications with her own family members about Saha, Saha's hurt feelings and "unflattering opinions" about Saha is not an actionable basis for an IIED claim as a matter of law. (See Cochran, *supra*, 65 Cal.App.4th at p. 496.) No reasonable jury could construe Doreen's personal decision-making about what information she wanted to share with her children and who she wanted to include in her family, particularly during a period of heightened interpersonal conflict with Saha, as exceeding all bounds of human decency. (Potter, *supra*, 6 Cal.4th at p. 1001.)

e.

Defendant Bijou Netty

Fifth,

Plaintiff alleges Bijou followed her home after a restraining order was issued against Kourosh, questioned Plaintiff's mail carrier about her in violation of Plaintiff's privacy, and stated "every woman gets beaten by their husband." (FAC, ¶¶ 48, 250.)

The

Family Defendants submit sufficient prima facie evidence to suggest that Bijou's comments were not "outrageous." In her deposition, Saha admits that Bijou was not a subject of any restraining order, and therefore, was not violating any court order when she followed Plaintiff home. (Price Decl., Exh. A, at p. 99:9-100:6.) Plaintiff also conceded that Bijou followed her home on only one occasion and that she believed Kourosh had requested Bijou to do so, for the same reason that he would have hired a private investigator. (Id. at p. 100:7-16.) Plaintiff declares that on July 10, 2023, approximately one month after the DVRO was issued, she witnessed Bijou parked in front of her residence, taking photos and videos of her car and home at the instruction of Kourosh on at least one occasion. (Saha Decl., ¶ 18.) Meanwhile, in her discovery responses, Bijou denies that she is aware of Plaintiff's current residential address and Saha admits that she has not given Bijou her current address. (Piesner Decl., Exh. J, at No. 8; Saha Decl., ¶ 18.)

Previously, during the period after Kourosh's September 14, 2022 arrest, Saha observed Bijou or her vehicle "in proximity to [the parties'] residence with no apparent purpose." (Ibid.) However, at this point, Saha was still living in the parties' shared apartment and, as Saha acknowledges, the police could not interfere with Bijou's right to sit in the street near the parties' house and

take photos, given that she did not have a restraining order against Bijou.

(See Price Decl., Exh. A, at p. 231:10-20.) Plaintiff further declares,

providing no particular date, that she observed Bijou approach Plaintiff's mail

carrier and heard Bijou ask the mail carrier questions about Plaintiff's mail

delivery. (Saha Decl., ¶ 19.) However, in her discovery responses, Bijou denies

she knows who Plaintiff's mail carrier is. (Piesner Decl., Exh. J, at No. 8.)

Ultimately,

the evidence relating to Bijou's alleged "surveillance" of Plaintiff suggests

that Bijou sporadically appeared around Plaintiff's apartment but lawfully

remained on the public street and took photographs of things observable from

the street. This conduct primarily occurred while Plaintiff was still living in

the apartment of Kourosh (Bijou's son). The evidence does not support an

extended pattern of surveillance or harassment at Plaintiff's new

residence. Even if Bijou followed Plaintiff home to her current address on one

occasion, this isolated conduct is insufficient to support a finding that

Bijou's conduct was so extreme as to exceed all bounds of human decency. (Potter,

supra, 6 Cal.4th at p. 1001.) Indeed, even if Plaintiff perceived

Bijou's conduct as threatening or harassing, she concedes that Bijou was not

violating any restraining order and that police did not consider her conduct to

be unlawful.

With

respect to Bijou's statements about domestic violence, Saha declares that Bijou came to her home in July 2022 after Saha's arrest. (Saha Decl., ¶ 10.) Saha declares that Bijou took her aside and told her that every woman at some point gets beaten by her partner and that Saha should think of the domestic violence incident as a "bad dream" that was "behind [her]." (Ibid.) Saha further declares that Bijou implied that Kourosh might not be sexually content in their relationship and that Plaintiff should take care of him more. (Ibid.) Bijou told Plaintiff that she should forget everything that happened to her and move on and that Kourosh's call to the police was a mistake. (Id. ¶ 11.) Bijou later sent Plaintiff a text message stating that what happened to her was a "secret." (Id. ¶ 12.) Saha perceived Bijou's comments as a deliberate effort to normalize her son's physical violence against Saha, to blame Saha for his conduct, to instruct Saha to remain silent, and to excuse Kourosh's deliberate causation of Saha's arrest. (Id. ¶¶ 10-11.) While Bijou's remarks, considered in context, may be particularly callous, insensitive, and socially inappropriate, Bijou's comments amount to nothing more than mere profanity, obscenity, or indignities that are not actionable grounds for IIED. (Yurick, *supra*, 209 Cal.App.3d at p. 1129.)

In sum,

the evidentiary record reflect isolated incidents involving each of the Family Defendants which fail to rise to the level of extreme or outrageous conduct sufficient to support a claim for IIED as a matter of law. Plaintiff's responsive evidence is insufficient to create a triable issue of material fact with respect to the outrageousness of any of the five Family Defendants' conduct. As Plaintiff cannot establish the first element of her IIED claim against any of the Family Defendants, summary adjudication of Plaintiff's fifteenth cause of action in favor of the Family Defendants is proper.

A.

17th

Cause of Action: Civil Conspiracy — GRANTED

No

triable issues of material fact exist with respect to Plaintiff's conspiracy claim against the Family Defendants. Plaintiff's conspiracy claim is based on the same allegations of wrongdoing underlying her IIED claim against the Family Defendants. Specifically, Plaintiff alleges that the Family Defendants "engaged in a coordinated pattern of behavior designed to intimidate, harass, and emotionally distress Plaintiff" with the shared objective to force Plaintiff to abandon her legal rights against Kourosh, to undermine Plaintiff's credibility in legal proceedings, and to interfere with her parental rights over Isabella.

(FAC, ¶¶ 46, 265.) The Family

Defendants argue that Plaintiff cannot establish that the Family Defendants

entered into any agreement to harass Plaintiff or that they intended to commit

wrongful acts against her.

Civil

conspiracy is not an independent tort. (Applied Equipment Corp. v. Litton

Saudi Arabia Ltd. (1994) 7 Cal.4th 503, 512.)

Rather, a conspiracy claim is a mechanism for imposing vicarious liability,

whereby each member of the conspiracy is liable for all acts committed by

others pursuant to the conspiracy, and for all damages caused thereby.

(Id., at pp. 510-511.) The elements of civil conspiracy are that: (1)

“the defendant had knowledge of and agreed to both the objective and the course

of action that resulted in the injury”, (2) “there was a wrongful act committed

pursuant to that agreement”, and (3) resulting damage. (Quelimane Co.

v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 47 (Quelimane).)

Here, the

Family Defendants submit sufficient prima facie evidence to refute Plaintiff’s

allegations that they entered into an agreement with each other to commit an

intentional tort or illegal act against Plaintiff or otherwise engaged in an

intentional, coordinated effort to target, intimidate, or harm Plaintiff. In

her deposition, Saha admits that she was not aware of any written agreement between the Family Defendants or anyone else in furtherance of their alleged conspiracy to harass Plaintiff and concedes that nobody has ever talked to her about any such written agreement. (Price Decl., Exh. A, at p. 111:13-24.) While Plaintiff contends that the purported agreement between the Family Defendants was made orally, she admits that she was not present when the alleged oral agreement was made. (Ibid.) Plaintiff merely inferred that there must have been “something between them” based on her observations of Kourosh’s phone conversations and fights. (Id. at p. 112:1-6.) Specifically, Kourosh kept repeating to Plaintiff that his parents were not happy and suffering because they didn’t see Isabella and that Saha was jealous of the Family Defendants. (Id. at p. 112:12-19.) Meanwhile, Kourosh was “going out to dinners, lunch, or whatever” with the Family Defendants and had phone conversations telling his father “how miserable” his life was. (Id. at p. 112:20-23.) Plaintiff also noticed that Kourosh’s father encouraged him to separate from Plaintiff on the same days that Kourosh would physically abuse Plaintiff. (Id. at p. 112:24-23.) Plaintiff’s above testimony suggests that her belief that an agreement was formed between the Family Defendants is based entirely on her own speculation and inferences based on Kourosh’s close relationship with his family. Indeed, Plaintiff admits that she has never heard from anyone,

whether part of the family or not, that there was an agreement between the

Family Defendants. (Id. at p. 120:12-15.)

Even if

Plaintiff could establish that some agreement between the Family Defendants was

formed, she also lacks evidence demonstrating the purpose, terms, or intent of

any such agreement. In her deposition, Saha concedes that she does not know the

terms of the alleged agreement and stated that she believed the goal of the

alleged agreement was to “protect their family.” (Price Decl., Exh. A, at p.

118:12-18.) Plaintiff has not identified any material facts including: (1) the

scope of their purported agreement, (2) what acts were contemplated by the

alleged conspirators, (3) who agreed to do what, or (4) when the agreement

occurred. Considered as a whole, Plaintiff’s deposition testimony confirms that

her civil conspiracy claim is entirely premised on her own assumptions.

Plaintiff’s mere speculation is not competent evidence that the Family

Defendants agreed to a joint objective to cause Plaintiff injury, which is a

critical element of her conspiracy claim. (See *Quelimane*, supra,

19 Cal.4th at p. 47.) Thus, the burden shifts to Plaintiff to

raise a triable factual dispute regarding the existence of an agreement between

the Family Defendants.

In

response, Plaintiff relies on the Family Defendants' discovery responses in which they concede that some communication did occur between the family, including communications about Plaintiff, during the legal conflict between Saha and Kourosh. (See Piesner Decl., Exh. D, at No. 23, 24, 25; Exh. H, at No. 17, 20.) However, Plaintiff identifies no specific admissions by the Family Defendants that such communications reflected efforts to coordinate harassment against Plaintiff or otherwise harm Plaintiff. For example, in her special interrogatory responses, Niloofar states that the Family Defendants' communications about Plaintiff through July 2022 typically arose related to social gatherings and "consisted of general, everyday topics" such as Plaintiff's "well-being, pregnancy, social plans, vacations, outings such as attending movies and spend quality time together, music, food and restaurants, and other routine matters." (Id. at No. 17) After March 2023, the communications between the Family Defendants regarding Plaintiff were minimal and were generally limited to matters relating to Kourosh's changed circumstances or pending legal issues in the Family Court pertaining to Kourosh, "to the extent necessary to address and respond to the false allegations asserted by Plaintiff" in both the family court matter and the instant action. (Ibid.)

Similarly, in his request for admission and special interrogatory responses, Masoud admitted that he had discussed Plaintiff's credibility regarding the

allegations contained in the Complaint in the instant action with at least one of the Family Defendants. (Piesner Decl., Exh. A, at Nos. 22, 23, 24; Exh. F, at Nos. 20, 21, 22.) However, Masoud also admitted that the Family Defendants' discussions related to general concerns in connection with the ongoing dispute between Kourosh and Plaintiff and increased communications after the filing of Plaintiff's Complaint in this action to the extent necessary to address and respond to Plaintiff's allegations asserted against them in this lawsuit. (Id. at No. 32.) The other Family Defendants' discovery responses are consistent with these responses.

At most,

the existence of family communications during a period of litigation and domestic conflict between a family member, Kourosh, and his former partner, Saha, is not sufficient evidence of an agreement to intimidate or harass Plaintiff or interfere with Plaintiff's legal rights. (FAC, ¶¶ 46, 265.) The fact that the Family Defendants were witnesses to and affected by Kourosh's conflict with Saha, gave Kourosh support during an intense period of conflict, and may have communicated about these events is not probative of an agreement to both a shared objective and course of action to harm Plaintiff's interests. (See *Quelimane*, supra, 19 Cal.4th at p. 47.) Plaintiff's inferences from the Family Defendants' discovery responses

reflect that her conspiracy claim is based on mere speculation that the Family Defendants were acting in coordination pursuant to a joint agreement.

As a matter of policy, the Court cannot open the door to potential liability for every family member who expresses support for one party over another in a domestic violence or family law dispute, even if such conduct incidentally harms the opposing party. In this case, Plaintiff's mere speculation that the Family Defendants' communications constituted a conspiracy to harass her and violate her rights is insufficient to create a triable issue of material fact regarding the alleged conspiracy. As Plaintiff cannot establish the first element of her conspiracy claim against the Family Defendants, summary adjudication of Plaintiff's seventeenth cause of action in favor of the Family Defendants is proper.

Therefore,

the Family Defendants Motion for Summary Judgment is GRANTED.

II. EVIDENTIARY

OBJECTIONS

Saha

objects to the Declaration of Brittney Ghadoushi (No. 1) and the Declaration of Benjamin Price (No. 2). The following evidentiary objections are SUSTAINED: 1 [in

part, at “nor any member of my family”] (lack of personal knowledge). The

following objections are OVERRULED: 1 [in part, at remaining paragraph] and 2.

III. REQUEST

FOR JUDICIAL NOTICE

The

Family Defendants request judicial notice of the Minute Order granting

Ghadoushi and Niloofar’s Special Motion to Strike. Judicial notice of this

court order is proper under Evidence Code section 452, subdivision (d).

Therefore, the Family Defendants’ request for judicial notice is GRANTED.

Moving parties are to serve notice of ruling.

This tentative ruling (“TR”) shall be the order of the Court unless changed at

the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court’s

website on 6/22/26 at 11:55.

[1] AMF was dismissed from this

lawsuit on October 23, 2025.

[2] MCCI was dismissed from this

lawsuit pursuant to the ruling on the demurrer on 2/24/2025.

[3]

“In order

to state a cause of action for [IIED] a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Terice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.)

[4]

Plaintiff

also alleges that Ghadoushi appeared at court hearings to "intimidate" Plaintiff and that she provided false testimony in court proceedings to undermine Plaintiff. (FAC, ¶¶ 47, 247.) However, the Court has already stricken these allegations as protected activity pursuant to Ghadoushi's Anti-SLAPP motion. (See Minute Order, 2/24/2025.) Thus, the Court need not consider the Family Defendant's arguments related to these allegations.

[5] Plaintiff also alleges that Niloofar

appeared at court hearings to "intimidate" Plaintiff and that she displayed disruptive behavior during court proceedings. (FAC, ¶ 248.) However, the Court has already stricken these allegations as protected activity pursuant to Niloofar's Anti-SLAPP motion. (See Minute Order, 2/24/2025.)

Thus, the Court need not consider the Family Defendant's arguments related to these allegations.